

Official Transcript of the American Military Tribunal in the Matter of the United States of America, against Otto Ohlendorf, et al, defendants, sitting at Nuernberg, Germany, on 9 April, 1948, 0930-1630, Justice Musmanno, presiding.

THE MARSHAL: The Honorables, the Judges of Military Tribunal II. Military Tribunal is now in session. God save the United States of America and this Honorable Tribunal.

There will be order in the Court.

THE PRESIDENT (reading):

INDIVIDUAL JUDGMENTS

In the judgments on the individual defendants now to follow, no attempt will be made to cite from all the testimony and documents introduced on both sides. Such a treatment would give to the overall Judgment a length out of all proportion to the nature of a final adjudication. Nor is it necessary. Although the Indictment has charged the several defendants with multiplicitous murders, the verdict of Guilty, where arrived at, does not need to be predicated on the total number contended for by the Prosecution.

It is also to be noted that while emphasis throughout the trial has been on the subject of murder, the defendants are charged also in Counts I and II with Crimes against Humanity and violations of Laws or Customs of War which include but are not limited to atrocities, enslavement, deportation, imprisonment, torture and other inhumane acts committed against civilian populations. Thus, if and where a conclusion of guilt is reached, such conclusion is not based alone on the charge of murder but on all committed acts coming within the purview of Crimes against Humanity and War Crimes. In each adjudication, without its being stated, the verdict is based upon the entire record.

DEFENDANT OTTO OHLENDORF

The evidence in this case could reveal not one but two Otto Ohlendorfs. There is the Ohlendorf represented as the student, lecturer,